

Court No. - 32

Case :- WRIT - C No. - 38236 of 2019

Petitioner :- Farhan Rasool

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vijay Singh Gour

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(I)Writ,order or direction in nature of certiorari in order to quash impugned Recovery Citation dated 25.09.2019 which was issued in pursuance to notice being letter ref. no. 3517/JC 2009-10 dated 10.07.2019, under section 5 of Uttar Pradesh Government Electricity Undertakings (Dues Recovery)Act, 1958 issued by respondent no. 3 for recovering a sum of Rs. 1,32,896/- as electricity dues from petitioner."

Heard Mr. Tinku Singh holding brief of Sri Vijai Singh Gour, learned counsel for the petitioner, Sri Suman Kumar Yadav, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days or till the matter is decided by the authority concerned, whichever is earlier, no coercive action shall be taken against the petitioner.

It is made clear that in case the petitioner does not approaches the authority concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 25.11.2019

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